

25STCV33858 25STCV33858

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-13

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Case Number: 25STCV33858 Hearing Date: July 13, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the July 13, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status Conference. If all parties submit on the tentative minute order prior to the commencement of the July 13, 2026 ISC, the Court will adopt the tentative minute order, and the parties need not appear. However, if there is any matter that any party would like to discuss, including any proposed change to this tentative minute order, that party should not submit on this tentative but instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with Department 9 court staff and wait for the case to be called unless you receive notification that all parties have submitted on the tentative minute order.

IVAN

REYES vs MARISCOS EL PAISA, INC., 25STCV33858

[TENTATIVE] MINUTE
ORDER

The DECLARATION OF

RYAN D. HANDLEY filed 6/1/26 indicates that Plaintiff also intends to file a First Amended Complaint with PAGA penalties against both defendants. Plaintiff intends to send a PAGA letter to the LWDA within the next few days which will start the 65-day timer to add PAGA penalties for defendant EL MISMO RESAURANT, INC. Once that time period has elapsed, Plaintiff will file a First Amended Complaint with PAGA penalties against both defendants."

If Plaintiff

wishes to amend the Complaint to add a claim for PAGA penalties and is prepared to do so, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint adding a claim for PAGA penalties as long as Plaintiff files and serves such amended complaint by no later than October 13, 2026.

By no later than October

13, 2026, Plaintiff's Counsel must file either proof of service of the operative Summons and Complaint on ALL NAMED DEFENDANTS or a declaration explaining the failure to file proofs of service of the operative Summons and Complaint on ALL NAMED DEFENDANTS, setting forth any and all efforts undertaken to attempt service of the operative Summons and Complaint on ALL NAMED DEFENDANTS, and explaining why sanctions (including monetary sanctions of at least \$500) should not be imposed for failure to file proof of service of the operative Summons and Complaint on all of the named defendants, in compliance with California Rules of Court, Rule 3.720.

Failure to file

proof of service of the operative Summons and Complaint on ALL NAMED DEFENDANTS by October 13, 2026 may result in the Court setting an OSC re sanctions.

All Defendants are

ordered to file a timely Notice of Appearance within 30 days of service of the operative Summons and Complaint on them.

If any named

Defendant fails to timely respond to service of the operative Summons and Complaint by filing a Notice of Appearance, Plaintiff must timely seek and obtain entry of default against all such named Defendants who fail to timely file a Notice of Appearance.

The parties are to

file a Joint Status Report by no later than October 13, 2026. The Joint Status Report re Defendants' and Cross-Defendants' Responsive Pleadings must: (1) identify the filing date of the operative Complaint and each operative Cross-Complaint, and (2) for the operative Complaint and each operative Cross-Complaint, list every Defendant named in the operative Complaint and every Cross-Defendant named in every operative Cross-Complaint. Next to each Defendant and Cross-Defendant, the Joint Status Report must identify:

(a) the date on

which that Defendant/Cross-Defendant has filed a Notice of Appearance or otherwise responded to the operative Complaint/Cross-Complaint,

(b) if that

Defendant/Cross-Defendant has not timely responded to service of the summons and complaint/cross-complaint and if that Defendant's/Cross-Defendant's default has been entered, then the date on which that Defendant's/Cross-Defendant's default was entered, or

(c) if that

Defendant/Cross-Defendant has not timely responded to service of the summons and complaint/cross-complaint and if that Defendant's/Cross-Defendant's default has not been entered, then the date on which proof of service of the operative summons and complaint/cross-complaint on that Defendant/Cross-Defendant was filed.

The previously

imposed stay on discovery remains in effect.

The Initial Status

Conference is continued to October 20, 2026 at 8:30 am. The parties are to file a Joint Initial Status Conference Report by no later than October 13, 2026 in compliance with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of service of such.